

power to withhold and accumulate any portion of the interest during the life of A., and therefore, on his bankruptcy, the assignees became absolutely entitled (*d*). The question to be asked in these cases is, On the decease of the *cestui que trust* would his executor have a right to call upon the trustees retrospectively to account for the arrears? (*e*). If he would, then the creditors are prospectively entitled to the payments in *futuro*.

13. **Trusts for maintenance, &c.** — But where a trust is not exclusively for the benefit of the bankrupt, but of the bankrupt and another person, the creditors will, of course, take only so much as was intended for the bankrupt. Thus where real and personal estate was vested by a marriage settlement in trustees upon trust to apply the annual produce thereof “for the *maintenance and support* of A. B. his *wife and children*, if any, or otherwise, if they thought proper, to permit the same to be received by A. B. for his life,” and A. B. became bankrupt, leaving a wife but no children, the Master of the Rolls said, “There could be no doubt of the intention of the settlement, that the wife should be supported out of the property, and he was of opinion that so long as the wife and children were maintained by A. B., the trustees had a discretion to give him the whole income, but that it was their duty to see that the wife and children were maintained; that the assignees took everything, subject to what was proper to be allowed for the maintenance of the wife and children, and that it must be referred to [*100] * the Master to settle a proper allowance” (*a*). And

where trustees have an arbitrary power of applying or not applying a fund for the benefit of the bankrupt, or of applying the fund in the alternative either for the benefit of the bankrupt or of another person, the bankruptcy will have no effect upon the power (*b*). Thus, where a fund was

(*d*) *Snowdon v. Dales*, 6 Sim. 524.

(*e*) See *Re Sanderson's Trust*, 3 K. & J. 497.

(*a*) *Page v. Way*, 3 Beav. 20.

[(*b*) See *Chambers v. Smith*, 3 App. Cas. 795, 808, where Lord O'Hagan observed, “If the debtor have a

vested property and an absolute claim they will of course pass from him; but if the property and the claim are subject to conditions and liable to be affected by the discretionary action of other people, the creditor cannot escape the fulfilment of the conditions